

ORIGINAL

FILED

MAY 14 2015

Small Claim Form for Informal Adjudication
and Information Checklist

Federal Maritime Commission, Washington, DC.

Federal Maritime Commission
Office of the Secretary
PAYMENT RECEIVED
FMC



Informal Docket No. 1950(1)

ShemiTrans, LLC
(Claimant)

vs.

Rose Containerline, Inc
(Respondent)

Date 5-14-15
Check No. 1216
Amount 67
Received By [Signature]

I. The claimant is a Limited Liability Corporation. The nature of their business is international and domestic transportation services for cargo (freight forwarder). The claimant is also a licensed Ocean Transportation Intermediary (OTI). The principal place of business is at; 10411 Motor City Drive, Suite 750, Bethesda, MD 20817

II. The respondent named above is a Corporation. The nature of their business is as a Non-Vessel Operating Common Carrier (NVOCC) and/or Ocean Transportation Intermediary (OTI). The principal place of business is at; 147 West 25th Street, New York, NY 10001

III. That Rose Containerline acted negligently in handling and shipping of cargo as a Non-Vessel Operating Common Carrier (NVOCC) and/or Ocean Transportation Intermediary (OTI). This resulted in a loss of cargo while in the possession of Rose Containerline and/or their agents. Most notably, Rose Containerline is in violation of Shipping Act, 46 U.S.C 41102 (c), which provides that an OTI "may not fail to establish, observe and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property." As a violation of this statute, this claim is under the jurisdiction of the Federal Maritime Commission (FMC).

V. The statute that is violated is Shipping Act, 46 U.S.C 41102 (c), which provides that an OTI "may not fail to establish, observe and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property." .

VI. The claimant's business activity has been affected as Rose Containerline negligently handled and lost cargo that is valued at \$11,668.25. As a result, the claimant is responsible for this amount to the true owner of the cargo. Furthermore, the claimant has lost future business from their client as a result of the lost cargo and Rose Containerline's unwillingness to take necessary and reasonable actions to compensate the parties affected by their negligent actions. The amount of damages requested is in the full amount of cargo that was lost; \$11,668.25

VII. The undersigned authorizes the Settlement Officer to determine the above-stated claim pursuant to the informal procedure outlined in subpart S (46 CFR 502.301-502.305) of the Commission's informal procedure for adjudication of small claims subject to discretionary Commission review.

Attach memorandum or brief in support of claim. Also attach bill of lading, copies of correspondence or other documents in support of claim.

(Date) 05/12/15

(Claimant's signature) _____

(Claimant's address) 10411 Motor City Drive, Suite 750, Bethesda, MD 20817

(Signature of agent or attorney) _____

(Agent's or attorney's address) _____

VERIFICATION

State of _____ County of _____ ss: _____
being first duly sworn on oath deposes and says that he or she is _____

The claimant [or if a firm, association, or corporation, state the capacity of the affiant] and is the person who signed the foregoing claim, that he or she has read the foregoing and that the facts set forth without qualification are true and that the facts stated therein upon information received from others, affiant believes to be true.

“I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct”

Yashar Norhashemi (Print Name)

yashar (Signature) 05/12/2015 (Date)

Yashar Norhashemi (Managing Member)
ShemiTrans, LLC
10411 Motor City Drive, Suite 750
Bethesda, MD 20817
Tel: 240 395 1507
Email: yashar@shemitrans.com

Cover Letter for Filing a Small Claims Complaint

Date: May 12th, 2015

From: ShemiTrans, LLC (FMC License No: 024400F)

Attention: Karen V. Gregory (Secretary at the Federal Maritime Commission)

Address: 800 N. Capitol St. N.W., Washington DC 20573

Subject: Filing of Small Claims Complaint Against Rose Containerline, Inc. (FMC License No: 013031)

Dear Mrs Gregory,

I am writing to you with hope that the Federal Maritime Commission (FMC) can assist my company (ShemiTrans, LLC) with the filing of a small claims complaint against Rose Containerline, Inc. ShemiTrans, LLC contracted with Rose Containerline to move 4 Pallets consisting of 46 Boxes of cargo from an origin location in New Prague, Minnesota to the port/terminal of Sharjah, UAE on December 22nd, 2014. Rose Containerline personnel purposefully broke down three of the four pallets in order to fit them in a cargo container. This damaged the manufacturer's original shrink-wrapped packaging and resulted in shipment of a number of loose packages. This unauthorized break down of the pallets was first informed to us by Kaileigh Martin (employee of Rose Containerline) via a telephone call on January 9, 2015. This subsequently was confirmed by Ms. Martin via an email dated January 9, 2015. This was followed by another email dated the same day in which Ms. Martin stated that "trust me, I ripped my warehouse a new one. They are supposed to ask and advise when they break down."

Following a delay with the original vessel departure date, the shipment was finally loaded on the vessel on January 9, 2015. The shipment arrived in Sharjah on February 20, 2015 and was released to the customer in Sharjah on February 22. Unfortunately, only 33 of the 46 boxes arrived with the vessel. ShemiTrans timely informed Rose Containerline, which has been unable to account for the missing packages. This has led ShemiTrans to believe that Rose Containerline

acted negligently in the handling and shipping of the cargo and did not take the necessary precautions to make sure that the cargo arrived in full to destination.

After making numerous attempts to contact Rose Containerline in order to come to a solution on this matter, Rose Containerline has refused to claim any responsibility for the unauthorized breakdown and loss of cargo. Initially, Rose Containerline stated they would file our claim with their insurance company. After a lengthy amount of time and no progress being made with our claim, ShemiTrans learned that Rose Containerline never filed the claim with their insurance company and refused to treat the claim in a serious manner. ShemiTrans is responsible for the missing items to their client in the sum of \$11,668.25 USD and we are looking to receive that full amount from Rose Containerline as it is clear from the supporting documentation that they violated the Shipping Act, 46 U.S.C 41102 (c), which states that an NVOCC and/or OTI "may not fail to establish, observe and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property."

ShemiTrans feels that it has a clear case against Rose Containerline as they were in violation of the Shipping Act, 46 U.S.C 41102 (c). The attached supporting documentation supports the claim against Rose Containerline. Should the FMC need any further information from ShemiTrans, please feel free to contact at the below information. Thank you for your time and consideration to this serious matter!

Sincerely,

Yashar Norhashemi
Managing Member of ShemiTrans, LLC
10411 Motor City Drive, Suite 750
Bethesda, MD 20817

Tel: 240 395 1507 / Email: yashar@shemitrans.com



Table of Contents for Supporting Documentation

- 1) Document 1** – Official Claim Letter sent to Rose Containerline (Respondent) on 03/09/2015. Letter was sent claiming against Rose Containerline for cargo lost as a result of negligent handling and shipping. This claim was ignored by Rose Containerline and never sent to their insurance company. Rose Containerline stated they would report the claim to their insurance company but never did.
- 2) Document 2** – Commercial Invoice for the entire list of items handled by Rose Containerline. The red asterisks denote the specific items that were lost by Rose Containerline due to negligent handling and shipping of the cargo
- 3) Document 3** – Packing List for the entire list of items handled by Rose Containerline. The red asterisks denote the specific items that were lost by Rose Containerline due to negligent handling and shipping of the cargo
- 4) Document 4** – Rose Containerline Trucking Bill of Lading indicating that 4 Pallets were picked up from the origin location
- 5) Document 5** – Delivery Receipt showing that 4 Pallets were delivered to Rose Containerline's warehousing agent (AZ Midwest CFS)
- 6) Document 6** – Rose Containerline's Ocean Bill of Lading
- 7) Document 7** – String of Emails showing that Rose Containerline picked up 4 Pallets from the origin location, broke down the pallets into loose pieces while in their possession and without asking permission from ShemiTrans, and negligently lost 13 Boxes of the cargo.



Document
1

Date: March 9, 2015

To: Rose Container Lines (OTI # 013031N)

Address: 147 West 25th Street, 6th Floor
New York, NY 1001

Subject: Claim Against Missing Cargo for Rose Bill of Lading # 24359-07

Attn: Josh Rosenberg (General Manager)

Dear Mr. Rosenberg,

This is in reference to the lost goods under Bill of lading 24359-07 and suppliers invoice number 406499122214 and packing list # 1166703.

Unfortunately Rose Container Lines has broken down the original suppliers/manufacturers packing of 4 skids holding 46boxes without any consent or authorization from the supplier (Chart Inc) or booking agent ShemiTrans, LLC. Due to this unauthorized break down of the pallets, 13 boxes were lost and never delivered to final destination Sharjah/UAE.

Enclosed please find the complete Commercial Invoice and Packing List for this transport that took place under Bill of Lading 24359-07. Missing items are marked accordingly.

The items missing are valued at:

Missing item # 10725435 = 8 out of 10 cartons missing
Unit price = USD 1,056.25 x 8 = USD 8,450.00 (Total)

Missing item # 10650197 = 1 out of 1 carton missing
Unit price = USD 2,470.65 x 1 = USD 2,470.65 (Total)

Missing Item # 10937403 = 4 out of 4 cartons missing
Unit price = USD 186.90 x 4 = USD747.60 (Total)

Total claim amount = USD 11,668.25

We hereby request Rose Container Lines to compensate for the entire amount of the lost/missing items as our client overseas (3A9Cryogenic FZE) has put the same claim on ShemiTrans, LLC and its agent Complete Freight Solutions, LLC.

Your urgent actions and response is highly appreciated.

With Kind Regards,

Idin Norhashemi (Managing Member)
ShemiTrans, LLC





CHART INC.
COMMERCIAL INVOICE

201 7TH ST NW
NEW PRAGUE MN 56071
United States

Document
2

Invoice Number	406499122214
Invoice Date	12/22/14
Page	1 of 2
Branch	3011 RE
Order Number	406499 SO
Customer PO	3A-PO/103/2014
Due Date	03/22/15

SOLD TO: 135401
3A-CRYOGENIC FZE P O BOX 42271 HFZ SHARJAH United Arab Emirates (UAE)

SHIP TO:
3A-CRYOGENIC FZE P O BOX 42271 HFZ Winnie Patenta +9716 5260441 SHARJAH United Arab Emirates (UAE)

Credit Terms	NET 90
Contact	WINNIE

Shipping Terms	EXW INCOTERMS 2010
Ship Date	12/22/14

Item Number	Description	Quantity Shipped	U/M	Unit Price	Extended Amount
9918109	FNL LAB 50 HS Code: 7613.00.0000 Serial# NPB2014450203J, NPB2014460382J, NPB2014460383J, NPB2014460384J, NPB2014460385J, NPB2014460386J, NPB2014460387J, NPB2014460388J OP MNL LANG EN,FR,DE,IT,PT.&ES Country of Origin: US	8.00	EA	897.0000	7,176.00
9918109	FNL LAB 50 HS Code: 7613.00.0000 Serial# NPB2014460389J OP MNL LANG EN,FR,DE,IT,PT.&ES Country of Origin: US	1.00	EA	897.0000	897.00
10668021	DISCH DVC MNL LAB-50,AL-50 HS Code: 8424.89.0000 WILL REPLACE 9711039 Country of Origin: US	3.00	EA	436.8000	1,310.40
* 10725435	FNL XC47/11-10 HS Code: 7613.00.0000 Serial# NPB2014470515U, NPB2014470516U, NPB2014470517U, NPB2014470518U, NPB2014470522U, NPB2014490703U, NPB2014500323U, NPB2014500324U, NPB2014500723U, NPB2014500725U OP MNL LANG EN,FR,DE,IT,PT.&ES Country of Origin: US	10.00	EA	1,056.2500	10,562.50
* 10650197	FNL CRYO-SYSTEM 4000 HS Code: 7613.00.0000 Serial# NPB2014470737Y OP MNL LANG EN,FR,DE,IT,PT.&ES Country of Origin: US	1.00	EA	2,470.6500	2,470.65
10937420	ROLLER BASE ASSY AI 22"ID CE HS Code: 8716.80.5070 MAX LOAD 500LB XLC360HE 510 Country of Origin: US	1.00	EA	186.9000	186.90
9918009	FNL SC3/3 HS Code: 7613.00.0000 Serial# NPB2014470291A, NPB2014470293A, NPB2014480403A, NPB2014480404A, NPB2014500664A, NPB2014500665A, NPB2014500666A, NPB2014500667A, NPB2014500668A, NPB2014500669A, NPB2014500670A, NPB2014500672A OP MNL LANG EN,FR,DE,IT,PT.&ES Country of Origin: US	12.00	EA	553.1500	6,637.80
* 10937403	ROLLER BASE ASSY AI 18.2"ID CE HS Code: 8716.80.5070 MAX LOAD 500LB LAB 30/50 Country of Origin: US	4.00	EA	186.9000	747.60
10937411	ROLLER BASE ASSY AI 20"ID CE HS Code: 8716.80.5070 MAX LOAD 500LB XC47/11 XLC450 Country of Origin: US	6.00	EA	186.9000	1,121.40

*** Continued ***



CHART INC.
COMMERCIAL INVOICE

201 7TH ST NW
NEW PRAGUE MN 56071
United States

Invoice Number	406499122214
Invoice Date	12/22/14
Page	2 of 2
Branch	3011 RE
Order Number	406499 SO
Customer PO	3A-PO/103/2014
Due Date	03/22/15

SOLD TO: 135401
3A-CRYOGENIC FZE P O BOX 42271 HFZ SHARJAH United Arab Emirates (UAE)

SHIP TO:
3A-CRYOGENIC FZE P O BOX 42271 HFZ Winnie Patenta +9716 5260441 SHARJAH United Arab Emirates (UAE)

Credit Terms	NET 90
Contact	WINNIE

Shipping Terms	EXW INCOTERMS 2010
Ship Date	12/22/14

Item Number	Description	Quantity Shipped	U/M	Unit Price	Extended Amount

Tax Rate	0 %	0.00
Total	USD	31,110.25

ALL ITEMS NOT SHIPPED IN FULL ARE BACK ORDERED AND WILL BE SHIPPED AS PROMPTLY AS POSSIBLE.
ALL MERCHANDISE COVERED BY THIS INVOICE WAS PRODUCED IN COMPLIANCE WITH FAIR LABOR STANDARDS ACT OF 1938 AS AMENDED

Unless already expressly agreed upon in writing signed by Chart, all orders are subject to the Chart terms and conditions of sale accompanying this document or available online at <http://www.chartindustries.com/terms> (the "Chart Terms"), which are incorporated by reference into this document and any resulting contract. Chart accepts all orders conditional upon the Chart Terms solely governing all transactions, and all other terms and conditions are expressly rejected. Customer's acceptance of Chart equipment or services shall constitute agreement to the Chart Terms.

These commodities, technology or software were exported from the United States in accordance with the Export Administration Regulations. Diversion contrary to U.S. law is prohibited

I / we hereby certify that the information on this invoice is true and correct and the contents of the shipment are as stated above.

Authorized Signature

Date

Heather M. Quinn

12/23/2014

R5549116

Pack List
CHART INC
201 7TH ST NW
NEW PRAGUE MN 56071
United States

Pack List # 1166703
Ship Date 12/22/14
Carrier ALL CARRIER
Mode of Transport Less than Truckload
Shipment Number 1166703
Tracking Container#

Shipping Terms EXW INCOTERMS 2010
Named Place

Document
3

Shipper CHART INC
201 7TH ST NW
NEW PRAGUE MN 56071
United States

Consignee 3A-CRYOGENIC FZE
P O BOX 42271 HFZ
Winnie Patent
+9716 5260441
SHARJAH
United Arab Emirates (UAE)
3A-CRYOGENIC FZE

Order Number	Line Number	Item Number	Description	Country Of Origin	Schedule B	Quantity Ordered	Quantity Shipped	UM
406499	1.000	9918109	FNL LAB 50	US	7613.00.0000	8	8	EA
Customer PO: 3A-PO: 103/2014								

Serial Numbers

NPB20144502031 NPB20144603821 NPB20144603831 NPB20144603841
NPB20144603851 NPB20144603861 NPB20144603871 NPB20144603881

406499	1.001	9918109	FNL LAB 50	US	7613.00.0000	1	1	EA
Customer PO: 3A-PO: 103/2014								

Serial Numbers

NPB20144603891

406499	2.000	10668021	DISCH DVC MNL LAB-50,AL-50	US	8424.89.0000	3	3	EA
Customer PO: 3A-PO: 103/2014								

* 406499	3.000	<u>10725435</u>	FNL XC47 11-10	US	7613.00.0000	10	10	EA
Customer PO: 3A-PO: 103/2014								

Serial Numbers

NPB20144705151 NPB20144705161 NPB20144705171 NPB20144705181
NPB20144705221 NPB20144907031 NPB20145003231 NPB20145003241
NPB20145007231 NPB20145007251

* 406499	4.000	<u>10650197</u>	FNL CRYO-SYSTEM 4000	US	7613.00.0000	1	1	EA
Customer PO: 3A-PO: 103/2014								

Serial Numbers

NPB2014470737Y

406499	5.000	10937420	ROLLER BASE ASSY AI 22"ID CE	US	8716.80.5070	1	1	EA
Customer PO: 3A-PO: 103/2014								

406499	7.000	9918009	FNL SC3.3	US	7613.00.0000	12	12	EA
Customer PO: 3A-PO: 103/2014								

Serial Numbers

NPB2014470291A NPB2014470293A NPB2014480403A NPB2014480404A

missing 8 out of 10 pieces/carton

all items missing

R5540116

Pack List
 CHART INC
 201 7TH ST NW
 NEW PRAGUE MN 56071
 United States

Shipper CHART INC
 201 7TH ST NW
 NEW PRAGUE MN 56071
 United States

Consignee 3A-CRYOGENIC FZE
 P O BOX 42271 HFZ
 Winnie Patent
 -9716 5260441
 SHARJAH
 United Arab Emirates (UAE)
 3A-CRYOGENIC FZE

Pack List # 1166703
 Ship Date 12/22/14
 Carrier ALL CARRIER
 Mode of Transport Less than Truckload
 Shipment Number 1166703
 Tracking Container#
 Shipping Terms EXW INCOTERMS 2010
 Named Place

Order Number	Line Number	Item Number	Description	Country Of Origin	Schedule B	Quantity Ordered	Quantity Shipped	UM
NPB2014500664A		NPB2014500665A	NPB2014500666A	NPB2014500667A				
NPB2014500668A		NPB2014500669A	NPB2014500670A	NPB2014500672A				
* 406499	8.000	10937403	ROLLER BASE ASSY AT 18.2"ID CE	US	8716.80.5070	4	4	EA
		Customer PO: 3A-PO-103-2014						
406499	9.000	10937411	ROLLER BASE ASSY AT 20"ID CE	US	8716.80.5070	6	6	EA
		Customer PO: 3A-PO-103-2014						

All items missing

Handling Units	Container I.D	Length Per unit	Width Per unit	Height Per unit	UM	Gross Weight Per Unit	Total Gross Weight	Wt UM	Notes Reference
4		121.9199	101.5999	121.9199	CM		619.2	KG	
		121.9199	116.8399	160.0199	CM			KG	
		121.9199	104.1399	160.0199	CM			KG	
		137.1599	101.5999	157.4799	CM			KG	
4	TOTAL SHIPMENT						619.2	KG	

*Total 33 Boxes were delivered
 13 Boxes remain missing*

BOL NO: VL026870

BILL OF LADING

Carrier: CENTRAL TRANSPORT

SHIPPER

Pickup Date: 12-22-2014

CHART INC.
201 7TH ST. NW.
NEW PRAUGE, MN 56071
DAVE, 952-758-8492, F:

Origin Terminal
OWATONNA, MN
P: 586-467-1900 F: 586-939-7000

Destination Terminal
HILLSIDE, IL
P: 586-467-1900 F: 586-939-7000

CONSIGNEE

ROSE CONTAINERLINE C/O AZ MIDWEST CFS
875 EAST DEVON AVE
ELK GROVE VILLAGE, IL 60007
RECEIVING, 847-350-0631, F:

SCAC: CTII
Booking Number: NYCSHJ 094589
Pick Up Number: PO# 3A-PO/103/2014 CHART # 406499
Total Qty: 4.0

3RD PARTY BILL TO:

Priority 1 Inc.
P.O. Box 398
North Little Rock, AR 72115
Accounts Payable, 501-371-9814, F: 501-374-5960

215-5782949-2

Special Instructions: PALLET DIMENSIONS AS FOLLOWS: 1 @ 48 x 46 x 63 inches 1 @ 48 x 54 x 60 inches 1 @ 48 x 46 x 45 inches 1 @ 48 x 40 x 43 inches

Freight Terms:

Prepaid: ___
Collect: ___
3rd Party: X

Accessorials:

Qty	Type	Weight	HM (X)	NMFC	Item Description	LTL Class
4	PLT	1365			EMPTY CYLINDERS (PCF 5.39)	175.0
4		1365			GRAND TOTALS:	

Where the rate is dependent on value, shippers are required to state specifically in writing the agreed or declared value of the property as follows: "The agreed or declared value of the property is specifically stated by the shipper to be not exceeding _____ per _____."

Remit COD to:

COD Fee: ___ Collect ___ Prepaid Check one: ___ Certified Check/Funds ___ Company Check ___ Money Order/Cash COD Amount: \$ _____

Note: Liability limitation for loss or damage in this shipment may be applicable. See 49 USC 14706(c)(1)(A) and (B).

Received, subject to individually determined rates or contracts that have been agreed upon in writing between the carrier and shipper, if applicable, otherwise to the rates, classifications and rules that have been established by the carrier and are available to the shipper, on request, and to all applicable state and federal regulations.

Trailer Loaded:
___ by Shipper
___ by Driver

Freight Counted:
___ by Shipper
___ by Driver

The Carrier shall not make delivery of this shipment without payment of and all other lawful charges.
Shipper: _____

Shipper Signature/Date

Carrier Signature/Pickup Date

This is to certify that the above named materials are properly classified, packaged, marked and labeled, and are in proper condition for transportation according to the applicable regulations of the DOT.

Carrier acknowledges receipt of packages and required placards. Carrier certifies emergency response information was made available and/or carrier has the DOT emergency response guidebook or equivalent documentation in vehicle. Property described above is received in good order, except as noted.

Shipper: _____

Carrier: _____

BILL OF LADING

24359-07

EXPORT IN FRANCE 2

Document
6

CORVATON AGENT UNIT NO.

POINT AND COUNTRY OF ORIGIN OF GOODS
USA

GULF AGENCY CO. SHARJAH W.L.L.
GROUND FLOOR PETROFAC HOUSE BUILDING
AL SOOR STREET OPPOSITE GRAND MOSQUE
P.O.B. 435 SHARJAH U.A.E.
UNITED ARAB EMIRATES

THE CARBONATE RAY

NEW PRAGUE, MN

资料来源：根据《中国统计年鉴》、《中国城市统计年鉴》和《中国农村统计年鉴》整理。

MAERSK DETROIT 1503

NEW YORK

OTI # 013031N

PORT OF DISCHARGE
JEBEL ALI

PLACE OF DELIVERY BY ENCARRIA *
SHARJAH

TYPE OF SERVICE
EXPRESS

PARTICULARS FURNISHED BY SHIPPER

MARKS & NOS. CONTAINER NOS	NO. OF PKGS	DESCRIPTION OF PACKAGES AND GOODS	GROSS WEIGHT	MEASUREMENT
MSKU0857658 SEAL#6548158 LOT# 596262 3A CRYOGENIC...UAE	4	PALLETS STC: 15 PIECES EMPTY CYLINDERS HS CODE: 7613.00.0000, 8424.89.0000, 8716.80.5070 ITN: X20141223928789 FREIGHT PREPAID EXPRESS BILL OF LADING	1365 LB 619 KG	126.76 CF 3.591 CM

NOTICE: Clause 7 of the reverse side hereof limits Carrier's liability to a maximum of U.S. \$500 per package or customary freight unit by virtue of incorporation of the U.S. Carriage of Goods by Sea Act, 1924, unless Merchant declares a higher cargo value below and pays Carrier an ad valorem bulk charge. Declared Cargo Value US \$ _____ . If Merchant enters a value, Carrier's limitation of liability shall not apply and the ad valorem rate will be charged.

These commodities, technology, or software were exported from the United States in accordance with the Export Administration Regulations. Diversion contrary to U.S. law prohibited.

FREIGHT & CHARGES	BASIS	RATE	PREPAID	COLLECT
			TOTAL	TOTAL

Received the described goods or packages or containers said to contain goods, in apparent good order and condition, unless otherwise indicated, to be transported and delivered as herein provided. The receipt, custody, carriage and delivery of the goods are subject to the terms appearing on the face and back hereof and to the Carrier's applicable tariff.

One of the Bills of Lading must be surrendered duly endorsed in exchange for the goods or delivery order.

IN WITNESS whereof 3 of original Bills of Lading all of this tenor and date have been signed in the number stated above, one of which being accomplished the others to be void.

NOTED NEW YORK 14-JAN-2015

(3938)

ROSE CONTAINERLINE, INC. AS CARRIER

Idin Norhashemi

From: Yashar Norhashemi
Sent: Tuesday, April 07, 2015 1:30 PM
To: Josh Rosenberg; Kaileigh Martin; Idin Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hello Josh

Thank you for your response!

Can you also advise the claim number with your insurance company and include that on the formal acknowledgement letter?

With kind regards,

Yashar Norhashemi
ShemiTrans, LLC
10411 Motor City Drive, Suite 750
Bethesda, MD 20817
Tel: +1 (240) 395 1507
Fax: +1 (240) 395 2347
Email: yashar@shemitrans.com
Website: www.shemitrans.com



From: Josh Rosenberg [mailto:Josh@rosecontainerline.com]
Sent: Tuesday, April 07, 2015 1:25 PM
To: Yashar Norhashemi; Kaileigh Martin; Idin Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Yashar

I just received your VM. I will mail your acknowledgment letter by the end of the week.

I have no further information to provide regarding the status of this claim. Hopefully you have already submitted this claim against the shipper's interest policy and that underwriter will be in touch with me directly.

Brgds
Josh

Josh Rosenberg
General Manager



CELEBRATING OUR
20th ANNIVERSARY
1 9 9 4 to 2 0 1 4

Rose Containerline, Inc.
Global NVOCC - FCL – LCL – Airfreight
147 West 25th Street
New York NY 10001
Tel +1 212 966 0084 x 218
Fax +1 212 966 5141
Skype: josh.rcl
josh@rosecontainerline.com
www.rosecontainerline.com



From: Yashar Norhashemi [mailto:yashar@shemitrans.com]
Sent: Tuesday, April 7, 2015 11:58 AM
To: Josh Rosenberg; Kaileigh Martin; Idin Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hello Josh

I never received a response to my email from yesterday...can you please advise?

With kind regards,

Yashar Norhashemi
ShemiTrans, LLC
10411 Motor City Drive, Suite 750
Bethesda, MD 20817
Tel: +1 (240) 395 1507
Fax: +1 (240) 395 2347
Email: yashar@shemitrans.com
Website: www.shemitrans.com



From: Yashar Norhashemi [mailto:yashar@shemitrans.com]
Sent: Monday, April 06, 2015 12:37 PM
To: 'Josh Rosenberg'; 'Kaileigh Martin'; Idin Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hello Josh

Can you advise on when we will receive a formal acknowledgement of the claim?

I need to present this to other parties involved in this process.

Please advise. Thank you!

With kind regards,

Yashar Norhashemi
ShemiTrans, LLC
10411 Motor City Drive, Suite 750
Bethesda, MD 20817
Tel: +1 (240) 395 1507
Fax: +1 (240) 395 2347
Email: yashar@shemitrans.com
Website: www.shemitrans.com



From: Josh Rosenberg [mailto:Josh@rosecontainerline.com]
Sent: Wednesday, April 01, 2015 11:37 AM
To: Yashar Norhashemi; Kaileigh Martin; Idin Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Yashar

You will receive an acknowledgement of claim shortly.

I'm sure you're experienced in the handling of insurance claims, so you will know that it's a long process and quite frankly we don't get updates. Once it's submitted, that's basically it for a while.

Not much else to tell unfortunately.

Thanks

Josh Rosenberg
General Manager



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Skype: josh.rcl
josh@rosecontainerline.com
www.rosecontainerline.com



From: Yashar Norhashemi [mailto:yashar@shemitrans.com]
Sent: Wednesday, April 1, 2015 11:34 AM
To: Josh Rosenberg; Kaileigh Martin; Idin Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hello Josh

Please provide me with consistent updates regarding the status with your insurance company. I was told that I would receive a formal letter in the mail from Rose or their insurance company stating that the claim process is underway and I have not received that. When will this be happening?

I have notified the client and they are handling with their own insurance company. Because I am the in the middle of all this, I have to update them about the steps taken by Rose and/or their agent(s) with their insurance company. I cannot do that without your assistance so I would appreciate receiving info for your side in a timely manner.

Thank you for your assistance!

With kind regards,

Yashar Norhashemi
ShemiTrans, LLC
10411 Motor City Drive, Suite 750
Bethesda, MD 20817
Tel: +1 (240) 395 1507
Fax: +1 (240) 395 2347
Email: yashar@shemitrans.com
Website: www.shemitrans.com



From: Josh Rosenberg [mailto:Josh@rosecontainerline.com]
Sent: Wednesday, April 01, 2015 11:00 AM
To: Yashar Norhashemi; Kaileigh Martin; Idin Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Yashar,

It was submitted. No further update available.

As advised many times, you should be filing a claim under the shipper's interest policy as well.

Thanks
Josh

Josh Rosenberg
General Manager



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josh@rosecontainerline.com
www.rosecontainerline.com



From: Yashar Norhashemi [mailto:yashar@shemitrans.com]
Sent: Wednesday, April 1, 2015 10:56 AM
To: Kaileigh Martin; Josh Rosenberg; Idin Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Good morning Kaileigh / Josh

Can you please update me on the status of the claim with your insurance company?

I need to provide an update to the client. Please advise. Thank you!

With kind regards,

Yashar Norhashemi
ShemiTrans, LLC
10411 Motor City Drive, Suite 750
Bethesda, MD 20817
Tel: +1 (240) 395 1507
Fax: +1 (240) 395 2347
Email: yashar@shemitrans.com
Website: www.shemitrans.com



From: Yashar Norhashemi [mailto:yashar@shemitrans.com]
Sent: Tuesday, March 31, 2015 12:00 PM
To: 'Kaileigh Martin'; 'Josh Rosenberg'; Idin Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hello Kaileigh

Thank you for the update regarding the lost cargo

Are there any updates regarding the claim?

With kind regards,

Yashar Norhashemi
ShemiTrans, LLC
10411 Motor City Drive, Suite 750
Bethesda, MD 20817
Tel: +1 (240) 395 1507
Fax: +1 (240) 395 2347
Email: yashar@shemitrans.com
Website: www.shemitrans.com



From: Kaileigh Martin [mailto:Kaileigh@rosecontainerline.com]
Sent: Monday, March 30, 2015 4:56 PM
To: Yashar Norhashemi; Josh Rosenberg; Idin Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hi Yashar

Unfortunately we have no developments on the missing cargo

Regards,

Kaileigh Martin
LCL Supervisor



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From: Yashar Norhashemi [mailto:yashar@shemitrans.com]
Sent: Monday, March 30, 2015 11:24 AM
To: Josh Rosenberg; Kaileigh Martin; Idin Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Good morning Josh

Hope you had a nice weekend!

Any developments with finding the cargo or the claims process?

Please let me know when you have a chance. Thank you!

With kind regards,

Yashar Norhashemi
ShemiTrans, LLC
10411 Motor City Drive, Suite 750
Bethesda, MD 20817
Tel: +1 (240) 395 1507
Fax: +1 (240) 395 2347
Email: yashar@shemitrans.com
Website: www.shemitrans.com



From: Josh Rosenberg [mailto:Josh@rosecontainerline.com]
Sent: Tuesday, March 24, 2015 10:30 AM
To: Yashar Norhashemi; Kaileigh Martin; Idin Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Good day Yashar

No further developments – warehouse still reports cargo is not found.

We have indeed submitted documents and I will send you a formal acknowledgment letter later this week.

As discussed on our phone call, please ensure that whomever insured these goods (shipper, consignee, or yourselves) also file a claim against the shipper's interest policy as this will be the quickest recourse.

Thanks
Josh

Josh Rosenberg
General Manager



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josh@rosecontainerline.com
www.rosecontainerline.com



From: Yashar Norhashemi [mailto:yashar@shemitrans.com]
Sent: Tuesday, March 24, 2015 10:28 AM
To: Josh Rosenberg; Kaileigh Martin; Idin Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Good morning Josh

Any updates from either the Chicago or New York warehouse?

Also, please advise if you submitted the documentation to your insurance company and any updates regarding that matter.

Thank you!

With kind regards,

Yashar Norhashemi
ShemiTrans, LLC
10411 Motor City Drive, Suite 750
Bethesda, MD 20817
Tel: +1 (240) 395 1507
Fax: +1 (240) 395 2347
Email: yashar@shemitrans.com
Website: www.shemitrans.com



From: Josh Rosenberg [mailto:Josh@rosecontainerline.com]
Sent: Wednesday, March 18, 2015 3:27 PM
To: Yashar Norhashemi; Kaileigh Martin; Idin Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Yashar,

While we might submit documentation, whomever insured the goods (Shemitrans, your shipper or consignee) must also submit a claim with THEIR insurance company.

Neal explained this at length to whomever he spoke to yesterday.

Thanks
Josh

Josh Rosenberg
General Manager



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josh@rosecontainerline.com
www.rosecontainerline.com



From: Yashar Norhashemi [mailto:yashar@shemitrans.com]
Sent: Wednesday, March 18, 2015 3:25 PM
To: Josh Rosenberg; Kaileigh Martin; Idin Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hello Josh

Are you submitting my documentation to your insurance company?

Also, have you guys been checking in with AZ warehouse to make sure they are looking for the missing cargo?

With kind regards,

Yashar Norhashemi
ShemiTrans, LLC
10411 Motor City Drive, Suite 750
Bethesda, MD 20817
Tel: +1 (240) 395 1507
Fax: +1 (240) 395 2347
Email: yashar@shemitrans.com
Website: www.shemitrans.com



From: Josh Rosenberg [mailto:Josh@rosecontainerline.com]
Sent: Wednesday, March 18, 2015 3:18 PM
To: Yashar Norhashemi; Kaileigh Martin; Idin Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Yashar

We are in receipt of your claim documents.

Your client (or whomever insured goods) should be filing an insurance claim with their own insurance company. I suggest they do this without delay.

Thanks
Josh

Josh Rosenberg
General Manager



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From: Yashar Norhashemi [mailto:yashar@shemitrans.com]
Sent: Wednesday, March 18, 2015 9:54 AM
To: Kaileigh Martin; Idin Norhashemi; Josh Rosenberg
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Good morning Kaileigh / Josh

Your colleague Neal was kind enough to call me yesterday afternoon and let me know that he received our claim in the mail.

Please keep me updated on the process as Neal said he would be submitting the paperwork to your insurance company.

If you need anything from my side, please let us know. Thank you!

With kind regards,

Yashar Norhashemi
ShemiTrans, LLC

10411 Motor City Drive, Suite 750
Bethesda, MD 20817
Tel: +1 (240) 395 1507
Fax: +1 (240) 395 2347
Email: yashar@shemitrans.com
Website: www.shemitrans.com



From: Kaileigh Martin [mailto:Kaileigh@rosecontainerline.com]
Sent: Monday, March 16, 2015 3:34 PM
To: Idin Norhashemi; Josh Rosenberg; Yashar Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hi Idin

As of right now we have not seen anything pop up.

Regards,

Kaileigh Martin
LCL Supervisor



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From: Idin Norhashemi [mailto:idin@shemitrans.com]
Sent: Monday, March 16, 2015 3:24 PM
To: Josh Rosenberg; Kaileigh Martin; Yashar Norhashemi
Subject: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hello Josh and Kaileigh,

Hope you both had a nice weekend.

Any news or luck in locating these missing items?

Please let me know.

Thank you very much.

Kindest Regards,

Idin Norhashemi

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Email: idin@shemitrans.com
Website: www.shemitrans.com
Skype: ShemiTrans



From: Josh Rosenberg [mailto:Josh@rosecontainerline.com]
Sent: Tuesday, March 10, 2015 1:15 PM
To: Idin Norhashemi; Kaileigh Martin; Yashar Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Idin

AZCFS 908-374-2250
Terminal Manager is Michael Lombardi

Thanks
Josh

Josh Rosenberg
General Manager



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josh@rosecontainerline.com
www.rosecontainerline.com



From: Idin Norhashemi [mailto:idin@shemitrans.com]
Sent: Tuesday, March 10, 2015 1:13 PM
To: Josh Rosenberg; Kaileigh Martin; Yashar Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hello Josh,

It was very nice to speak with you today.

As discussed, please send me the contact information and responsible person name at the Chicago and New Jersey warehouse.

I would like to also discuss the current lost items with them as well.

I appreciate your full support and cooperation.

Thank you and awaiting

Kindest Regards,

Idin Norhashemi

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10411 Motor City Drive, Suite 750
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Tel: +1 (240) 395 1375
Fax: +1 (240) 395 2347

Cell: +1 (301) 651-7848

Email: idin@shemitrans.com

Website: www.shemitrans.com

Skype: ShemiTrans



From: Josh Rosenberg [mailto:Josh@rosecontainerline.com]

Sent: Monday, March 09, 2015 12:31 PM

To: Idin Norhashemi; Kaileigh Martin; Yashar Norhashemi

Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Good morning Idin

Warehouse still advising negative on cargo location.

Please submit claim as soon as possible and we shall submit the same to the warehouse.

Thanks

Josh

Josh Rosenberg
General Manager



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Skype: josh.rcl

josh@rosecontainerline.com

www.rosecontainerline.com



From: Idin Norhashemi [mailto:idin@shemitrans.com]

Sent: Monday, March 9, 2015 9:53 AM

To: Kaileigh Martin; Yashar Norhashemi

Cc: Josh Rosenberg

Subject: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hello Kaileigh,

Any news from your warehouse guys?

I want to be 100% sure before we move forward on this.

Meanwhile I am waiting for clients official claim and will proceed once received. (should be in this week).

Please check and let me know if any good news or miracle from your side.

Thank you and awaiting

Kindest Regards,

Idin Norhashemi

ShemiTrans, LLC

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Bethesda, MD 20817

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Fax: +1 (240) 395 2347

Cell: +1 (301) 651-7848

Email: idin@shemitrans.com

Website: www.shemitrans.com

Skype: ShemiTrans



From: Kaileigh Martin [mailto:Kaileigh@rosecontainerline.com]

Sent: Wednesday, March 04, 2015 3:27 PM

To: Idin Norhashemi; Yashar Norhashemi

Cc: Josh Rosenberg

Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Yashar

Per our conversation my warehouse is still looking however with the current weather issues they are a little crazy right now.

We did mention that you could put a claim together as a next step

I spoke to Josh –

We don't have a claim form- so please send us on a new email chain your notification of a claim along with the items missing and the value of each item

If you need anything else let us know

Sorry again for all the troubles

Best

Regards,

Kaileigh Martin
LCL Supervisor



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From: Idin Norhashemi [mailto:idin@shemitrans.com]
Sent: Wednesday, March 04, 2015 1:22 PM
To: Kaileigh Martin; Yashar Norhashemi
Cc: Josh Rosenberg
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Any news????????????????

This has to be in your NJ warehouse. No other possibility.

Awaiting

Kindest Regards,

Idin Norhashemi

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Bethesda, MD 20817

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Fax: +1 (240) 395 2347
Cell: +1 (301) 651-7848
Email: idin@shemitrans.com
Website: www.shemitrans.com
Skype: ShemiTrans



From: Kaileigh Martin [mailto:Kaileigh@rosecontainerline.com]
Sent: Tuesday, March 03, 2015 5:03 PM
To: Yashar Norhashemi; Idin Norhashemi
Cc: Josh Rosenberg
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Chicago advised they do not have anything further to advise as of right now

NJ warehouse I am waiting a reply

Regards,

Kaileigh Martin
LCL Supervisor



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From: Yashar Norhashemi [mailto:yashar@shemitrans.com]
Sent: Tuesday, March 03, 2015 1:07 PM
To: Kaileigh Martin; Idin Norhashemi
Cc: Josh Rosenberg
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hello Kaileigh

Anything from your warehouses?

With kind regards,

Yashar Norhashemi
ShemiTrans, LLC
10411 Motor City Drive, Suite 750
Bethesda, MD 20817
Tel: +1 (240) 395 1507
Fax: +1 (240) 395 2347
Email: yashar@shemitrans.com
Website: www.shemitrans.com



From: Kaileigh Martin [mailto:Kaileigh@rosecontainerline.com]
Sent: Monday, March 02, 2015 3:56 PM
To: Idin Norhashemi; Yashar Norhashemi
Cc: Josh Rosenberg
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

NJ warehouse is doing an inventory tonight so if there are any boxes not claimed we will know by tomorrow afternoon

I am waiting on CHI warehouse

Regards,

Kaileigh Martin
LCL Supervisor



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From: Idin Norhashemi [mailto:idin@shemitrans.com]

Sent: Monday, March 02, 2015 3:38 PM

To: Kaileigh Martin; Yashar Norhashemi

Cc: Josh Rosenberg

Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Kaileigh,

Please find an email from my agent :

Dear idin

What is happening on this, can u pls chase this guys surely they might find something in the w/house as over 2 months this cargo came to them and they done re packing whatever stuff may be forgot some stuff to in the w/house or u have to ask shipper to give the list of cargo inside this 4 plts and which is missing we tell to the /whouse guys rather they start checking with their sweet time. I don't know how big is there w/house and how serious they are checking this. So pls check. thanks

Please advise.

Thank you

Kindest Regards,

Idin Norhashemi

ShemiTrans, LLC

10411 Motor City Drive, Suite 750

Bethesda, MD 20817

Tel: +1 (240) 395 1375

Fax: +1 (240) 395 2347

Cell: +1 (301) 651-7848

Email: idin@shemitrans.com

Website: www.shemitrans.com

Skype: ShemiTrans



From: Kaileigh Martin [mailto:Kaileigh@rosecontainerline.com]
Sent: Monday, March 02, 2015 10:11 AM
To: Yashar Norhashemi
Cc: Idin Norhashemi; Josh Rosenberg
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Yashar

I will take care of looking everywhere I can – I do not think central would have cargo as my warehouse confirmed they received 4 pallets in

It will be between the 2 warehouses

Thanks

Regards,

Kaileigh Martin
LCL Supervisor



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From: Yashar Norhashemi [mailto:yashar@shemitrans.com]
Sent: Monday, March 02, 2015 9:53 AM
To: Kaileigh Martin
Cc: Idin Norhashemi; Josh Rosenberg
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hello Kaileigh

I understand...in case both warehouses claim that they don't have it, it might be worth checking with Central. I just want to make sure we cover all possibilities.

I hope to hear some good news... Thanks!

With kind regards,

Yashar Norhashemi
ShemiTrans, LLC
10411 Motor City Drive, Suite 750
Bethesda, MD 20817
Tel: +1 (240) 395 1507
Fax: +1 (240) 395 2347
Email: yashar@shemitrans.com
Website: www.shemitrans.com



From: Kaileigh Martin [mailto:Kaileigh@rosecontainerline.com]
Sent: Monday, March 02, 2015 7:22 AM
To: Yashar Norhashemi
Cc: Idin Norhashemi; Josh Rosenberg
Subject: Re: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Yashar-

Central did not move your cargo to NY- our Chicago warehouse delivered a container to the rail to bring cargo to NY

Only places for this cargo to be are in Chicago or our NJ warehouse.

We are checking both places and will revert asap with any updates

Kaileigh Martin
Rose Containerline
LCL Supervisor

Sent from my iPhone

On Feb 27, 2015, at 3:56 PM, Yashar Norhashemi <yashar@shemitrans.com> wrote:

Hello Kaileigh

I've been investigating this matter on my own and have some input. See attached Central Transport's delivery receipt showing that they picked up in New Prague, MN and delivered 4

pallets to Rose c/o AZ Midwest CFS in Elk Grove Village, IL. From there, Central Transport moved the cargo to Rose's warehouse in NY and your warehouse receipt (2nd attachment) shows something other than 4 pallets as received. From this evidence, I believe the cargo is in one of three places;

- 1) AZ Midwest CFS' warehouse in Elk Grove Village, IL even though they said they checked and it's not there
- 2) At one of Central Transport's terminals in between Elk Grove, IL and Rose's warehouse in NY
- 3) Rose's warehouse in NY

I sincerely hope you guys are checking all possible locations of where the cargo could be. If the cargo is not found, we will have to pursue alternative options. Hopefully, it doesn't come to that and we find the missing cargo.

Thank you!

With kind regards,

Yashar Norhashemi
ShemiTrans, LLC
10411 Motor City Drive, Suite 750
Bethesda, MD 20817
Tel: +1 (240) 395 1507
Fax: +1 (240) 395 2347
Email: yashar@shemitrans.com
Website: www.shemitrans.com



From: Kaileigh Martin [mailto:Kaileigh@rosecontainerline.com]
Sent: Friday, February 27, 2015 3:07 PM
To: Yashar Norhashemi; Idin Norhashemi; Josh Rosenberg
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Thanks I know that I just didn't have the packing list

Best

Regards,

Kaileigh Martin
LCL Supervisor



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From: Yashar Norhashemi [mailto:yashar@shemitrans.com]
Sent: Friday, February 27, 2015 3:05 PM
To: Kaileigh Martin; Idin Norhashemi; Josh Rosenberg
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hello Kaileigh

Idin had provided that info earlier. Here it is again (first attachment is packing list);

MISSING ITEMS:

- PART NO: 10937403 (ROLLER BASE) – QTY: 4 PCS
- PART NO: 10725435 (FNL XC47/11-10) – QTY: 8 PCS
- PART NO: 10650197 (FNL CRYOSYSTEM 4000) – QTY: 1 PC

Total missing: 13 pcs/boxes

As I understand, this cargo was picked up and arrived to your Chicago warehouse as 4 Pallets. Your Chicago warehouse broke down the pallets (for some reason) and had Central Transport pick up and deliver to your New York warehouse. That's why your warehouse cargo receipt in NY shows something other than 4 Pallets (see 2nd attachment). Now your Chicago warehouse is saying they don't have anything. I need you to check with Central Transport to make sure they didn't leave these boxes behind somewhere in between Chicago and NY. Trucking companies are notorious for mis-handling loose boxes.

Also, have you guys checked with your New York warehouse that received the cargo from Central Transport? Maybe those guys didn't load everything into the container that departed out of NY?

Let me know. Thank you!

With kind regards,

Yashar Norhashemi
ShemiTrans, LLC
10411 Motor City Drive, Suite 750
Bethesda, MD 20817
Tel: +1 (240) 395 1507
Fax: +1 (240) 395 2347
Email: yashar@shemitrans.com
Website: www.shemitrans.com



From: Kaileigh Martin [mailto:Kaileigh@rosecontainerline.com]
Sent: Friday, February 27, 2015 2:50 PM
To: Idin Norhashemi; Josh Rosenberg
Cc: Yashar Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

The below was sent from my Chicago warehouse

We have checked out dock and have not found any missing cargo. Could they forward detailed pictures of the cargo they received and copies of the packing lists for further research?

Regards,

Kaileigh Martin
LCL Supervisor



Rose Containerline, Inc.
Global NVOCC - FCL – LCL – Airfreight
147 West 25th Street
New York NY 10001
Tel +1 212 966 0084 x 207
Fax +1 212 966 5141
Kaileigh@rosecontainerline.com
www.rosecontainerline.com

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From: Idin Norhashemi [mailto:idin@shemitrans.com]
Sent: Friday, February 27, 2015 2:40 PM
To: Kaileigh Martin; Josh Rosenberg
Cc: Yashar Norhashemi
Subject: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hi Kaileigh

As the day is coming to a near end, any news about the missing items before the weekend?

Please let me know.

Thank you very much.

Kindest Regards,

Idin Norhashemi

ShemiTrans, LLC
10411 Motor City Drive, Suite 750
Bethesda, MD 20817

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Fax: +1 (240) 395 2347
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Email: idin@shemitrans.com
Website: www.shemitrans.com
Skype: ShemiTrans



From: Kaileigh Martin [mailto:Kaileigh@rosecontainerline.com]
Sent: Friday, February 27, 2015 9:55 AM
To: Idin Norhashemi; Josh Rosenberg
Cc: Yashar Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Doing my best! Promise

I'll see what I can get you today

Regards,

Kaileigh Martin
LCL Supervisor



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From: Idin Norhashemi [mailto:idin@shemitrans.com]

Sent: Friday, February 27, 2015 9:38 AM

To: Kaileigh Martin; Josh Rosenberg

Cc: Yashar Norhashemi

Subject: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hi Kaileigh,

I really appreciate all that you are doing.

Today is Friday and UAE is closed. (Thank God)

Please do your best to come back with some good news today.

If they come back into work Saturday and no info from me, the emails and phone calls are going to start again all the way through the weekend. ☹ My wife will have my head!!! ☺

Hope you can come back to me with some good news today.

I truly appreciate your help.

Good luck.

Kindest Regards,

Idin Norhashemi

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Email: idin@shemitrans.com
Website: www.shemitrans.com
Skype: ShemiTrans



From: Kaileigh Martin [mailto:Kaileigh@rosecontainerline.com]
Sent: Friday, February 27, 2015 9:32 AM
To: Idin Norhashemi; Josh Rosenberg
Cc: Yashar Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Idin

Just wanted to let you know that I am working with the warehouses

They are checking for loose/ unclaimed boxes.

I will keep you posted with any news

Regards,

Kaileigh Martin
LCL Supervisor



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From: Idin Norhashemi [mailto:idin@shemitrans.com]
Sent: Thursday, February 26, 2015 9:14 AM
To: Kaileigh Martin; Josh Rosenberg
Cc: Yashar Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

I appreciate it Kaileigh.

Thank you

Kindest Regards,

Idin Norhashemi

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Email: idin@shemitrans.com
Website: www.shemitrans.com
Skype: ShemiTrans



From: Kaileigh Martin [mailto:Kaileigh@rosecontainerline.com]
Sent: Thursday, February 26, 2015 9:12 AM
To: Idin Norhashemi; Josh Rosenberg
Cc: Yashar Norhashemi
Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Idin

I am working on this as fast as I can

I will get back to you

Thanks

Regards,

Kaileigh Martin
LCL Supervisor



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From: Idin Norhashemi [mailto:idin@shemitrans.com]
Sent: Thursday, February 26, 2015 9:10 AM
To: Kaileigh Martin; Josh Rosenberg
Cc: Yashar Norhashemi
Subject: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hello Kaileigh,

Good morning any news?

Here is the message from the supplier to the client about missing items:

Dear Winnie,

I have confirmed with our shipping department, and they did in fact send ALL of the items. It also appears that only one of the four skids pictured belongs to Chart. The shipment most likely was rearranged by the freight forwarder.

Kindly confirm with the freight forwarder they delivered all the shipment.

They have also recognized based on the pictures that only 1 pallet out of the 4 was with the original packing done at their factory. Now it's known by all parties that 4 skids were opened up after pickup. This is starting spiral out of control and we need to urgently check this. Your agent is claiming all goods received were sent out to Sharjah. There is no other explanation but that it was left behind at Rose's warehouse.

Please check and get back to me as I am getting nonstop emails and phone calls.

Thank you for treating this as top urgent.

Please advise.

Kindest Regards,

Idin Norhashemi

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Bethesda, MD 20817

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Cell: +1 (301) 651-7848

Email: idin@shemitrans.com

Website: www.shemitrans.com

Skype: ShemiTrans



From: Kaileigh Martin [mailto:Kaileigh@rosecontainerline.com]

Sent: Wednesday, February 25, 2015 12:50 PM

To: Idin Norhashemi; Josh Rosenberg

Cc: Yashar Norhashemi

Subject: RE: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Idin

We will look into this all and get back to you as soon as we can

Thanks

Regards,

Kaileigh Martin
LCL Supervisor



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From: Idin Norhashemi [mailto:idin@shemitrans.com]

Sent: Wednesday, February 25, 2015 12:49 PM

To: Kaileigh Martin; Josh Rosenberg

Cc: Yashar Norhashemi

Subject: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Importance: High

Hello Josh and Kaileigh,

I have also attached the packing list to this email showing the items missing in **Red**.

MISSING ITEMS:

➤ **PART NO: 10937403 (ROLLER BASE) – QTY: 4 PCS**

➤ **PART NO: 10725435 (FNL XC47/11-10) – QTY: 8 PCS**

➤ **PART NO: 10650197 (FNL CRYOSYSTEM 4000) – QTY: 1
PC**

Total missing: 13 pcs/boxes

At the end of the packing list you can see that it has indicated total: 46boxes on 4 pallets. Client only received 33boxes

Please urgently follow this up and let me know the final outcome.

Thank you

Kindest Regards,

Idin Norhashemi

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10411 Motor City Drive, Suite 750*

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Fax: +1 (240) 395 2347

Cell: +1 (301) 651-7848

Email: idin@shemitrans.com

Website: www.shemitrans.com

Skype: ShemiTrans



From: Idin Norhashemi [mailto:idin@shemitrans.com]

Sent: Wednesday, February 25, 2015 9:10 AM

To: Kaileigh Martin; Josh Rosenberg

Cc: Yashar Norhashemi

Subject: Top Urgent Missing boxes Re-Packing + HBL 24359-07 - Q141351 (B141161)

Importance: High

Hello Josh,

There seems to be a big problem here and we are all investigating from your agent in Dubai to your warehouse here in USA.

There seems to be 13boxes missing out of the total 46boxes received by you from the supplier at origin.

The supplier has confirmed delivery to Rose's trucker with the following specs:

WE HAVE 406499 READY (UNITED ARAB EMIRATES)

Order is ready for collection.

46 BOXES LOADED ON

4 SKIDS

48X40X48 inches

48X46X63 inches

48X41X63 inches

54X40X62 inches

1365lb

The shipment was released to the client in Sharjah with 13 boxes missing.

Attached is the pictures and claim from the buyer.

Please urgently check your warehouse to see where these 13 boxes are as your agent in Dubai claims that anything received from the cntr has been delivered to Sharjah. They have even checked their warehouse in Dubai and nothing was left behind.

The only other possibility is that your warehouse guys did not load all of the goods into the cntr. As you said the cntr did not have much room for our original 4 pallets thus being broke down into loose items. It could be that your warehouse could not have loaded all 46 boxes due to space issues or simply just forgot.

Either way this has fallen on us and we are (Rose/ShemiTrans) responsible for any missing items.

I hope that you will treat this as top urgent as client in UAE is furious at all of us. Im not sure how all this will end but we need your immediate and urgent attention to this problem.

I appreciate your time and hope to find a solutions asap.

Thank you.

Kindest Regards,

Idin Norhashemi

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Email: idin@shemitrans.com

Website: www.shemitrans.com

Skype: ShemiTrans



From: Kaileigh Martin [mailto:Kaileigh@rosecontainerline.com]

Sent: Tuesday, February 24, 2015 9:21 AM

To: Idin Norhashemi; Josh Rosenberg

Cc: Yashar Norhashemi

Subject: RE: Urgent Status needed: Re-Packing + HBL 24359-07 - Q141351 (B141161)

Hi Idin

Yes I heard overnight that the delivery order for this was released to the customer on 2/22

Regards,